Foreign Relations
of the
United States
Diplomatic Papers
1942
(In Seven Volumes)

Volume I
General
The British Commonwealth
The Far East

United States
Government Printing Office
Washington : 1960

PREFACE

The *Foreign Relations* volumes have been compiled on an annual basis since the publication of diplomatic correspondence which accompanied President Lincoln's first annual message to Congress (December 3, 1861). Originally entitled *Papers Relating to Foreign Affairs Accompanying the Annual Message of the President*, the name of this series was changed in 1870 to *Papers Relating to the Foreign Relations of the United States*, and in 1947 to the present title.

Publication of these volumes, except for the year 1869, has been continuous. In addition to the annual volumes, supplements have also been published, among them the World War Supplements, the Lansing Papers, the special 1918–1919 Russia volumes, the Paris Peace Conference, 1919, series, Japan, 1931–1941, and The Soviet Union, 1933–1939.

The principles which guide the compilation and editing of *Foreign Relations* are stated in Department of State Regulation 045 of October 31, 1955, a revision of the order approved on March 26, 1925, by Mr. Frank B. Kellogg, then Secretary of State. The text of the current regulation is printed below:

045 Documentary Record of American Diplomacy

045.1 *Scope of Documentation*

The publication *Foreign Relations of the United States, Diplomatic Papers*, constitutes the official record of the foreign policy of the United States. These volumes include, subject to necessary security considerations, all documents needed to give a comprehensive record of the major foreign policy decisions within the range of the Department of State's responsibilities, together with appropriate materials concerning the facts which contributed to the formulation of policies. When further material is needed to supplement the documentation in the Department's files for a proper understanding of the relevant policies of the United States, such papers should be obtained from other Government agencies.

045.2 *Editorial Preparation*

The basic documentary diplomatic record to be printed in *Foreign Relations of the United States, Diplomatic Papers*, shall be edited by the Historical Office, Bureau of Public Affairs (P/HO) of the Department of State. The editing of the record shall be guided by the principles of historical objectivity. There shall be no alteration of the text, no deletions without indicating where in the text the deletion is made, and no omission of facts which were of major im-

portance in reaching a decision. Nothing shall be omitted for the purpose of concealing or glossing over what might be regarded by some as a defect of policy. However, certain omissions of documents or parts of documents are permissible for the following reasons:

a. To avoid publication of matters which would tend to impede current diplomatic negotiations or other business.
b. To condense the record and avoid repetition of needless details.
c. To preserve the confidence reposed in the Department by individuals and by foreign governments.
d. To avoid giving needless offense to other nationalities or individuals.
e. To eliminate personal opinions presented in despatches and not acted upon by the Department. To this consideration there is one qualification—in connection with major decisions it is desirable, where possible, to show the alternatives presented to the Department before the decision was made.

045.3 *Clearance*

To obtain appropriate clearances of material to be published in *Foreign Relations of the United States, Diplomatic Papers*, the Historical Office (P/HO) shall:

a. Refer to the appropriate policy offices of the Department and of other agencies of the Government such papers as appear to require policy clearance.
b. Refer to the appropriate foreign governments requests for permission to print as part of the diplomatic correspondence of the United States those previously unpublished documents which were originated by the foreign governments.

In keeping with the spirit of the above-quoted Department regulation, the research staff is guided in compiling the record by the principles of historical objectivity. In the selection of papers the editors have attempted to give a substantially complete record of American foreign policy as contained in the files of the Department of State together with as much background material as possible, while keeping the volumes within reasonable limits with respect to size and number.

The responsibilities of the Historical Office of the Bureau of Public Affairs for the preparation of the *Foreign Relations* volumes for 1942 were entrusted, under the general supervision of the Director of the Office, G. Bernard Noble, to the Foreign Relations staff under the direction of the Officer in Charge of the Foreign Relations Series (Editor of *Foreign Relations*), E. R. Perkins. The research staff which compiles *Foreign Relations* is divided into three branches: The General Branch, Gustave A. Nuermberger, Chief, which compiles subjects of a general nature involving more than one area; the Eastern Branch, Rogers P. Churchill, Chief, which compiles the record for Eastern Europe, the Far East, the Near East, and South Asia; and the Western Branch, N. O. Sappington, Chief, which compiles

the record for the British Commonwealth, Western Europe, Africa, and the American Republics.

The compilers of *Foreign Relations*, 1942, Volume I were G. A. Nuermberger, N. O. Sappington, John G. Reid, Herbert Fine, and former staff members Matilda F. Axton and Shirley L. Phillips.

The Division of Publishing Services is responsible with respect to *Foreign Relations* for the editing of copy, proofreading, and preparation of indexes. Under the general direction of the Chief of the Division, Norris E. Drew, the editorial functions mentioned above are performed by the Foreign Relations Editing Branch in charge of Elizabeth A. Vary, Chief, and Ouida J. Ward, Assistant Chief.

For 1942, the arrangement of volumes is as follows: Volume I, General, the British Commonwealth, the Far East; Volume II, Europe; Volume III, Europe; Volume IV, The Near East and Africa; Volume V, The American Republics; Volume VI, The American Republics. The *Foreign Relations* series for 1942 also includes the unnumbered volume on 1942, China, previously published.

E. R. PERKINS
Editor of Foreign Relations

MARCH 23, 1960.

GENERAL

DECLARATION BY UNITED NATIONS, SIGNED JANUARY 1, 1942[1]

740.0011 (European War 1939)/12–1941

Memorandum for the Secretary of State by Mr. Carlton Savage,[2] Assistant to the Assistant Secretary of State (Long)

[WASHINGTON,] December 19, 1941.

1. The Joint Declaration prepared today contains the two principal features customarily found in a military alliance. These are (1) a pledge of full support and cooperation in conducting the war against a common enemy, and (2) a pledge not to cease hostilities against the common enemy except by mutual agreement. Military alliances usually stipulate that the participating parties shall not conclude peace except by a mutual agreement. This Joint Declaration may be an improvement in this connection as it provides that the signatory governments shall not "cease hostilities against or conclude a separate armistice" except by common agreement. The present alliance between Great Britain and the Soviet Union[3] provides that the signatories will "neither negotiate nor conclude an armistice or treaty of peace except by mutual agreement". In this connection I think you will

[1] Secretary of State Cordell Hull describes the inception and development of the Declaration by United Nations in his *Memoirs* (*The Memoirs of Cordell Hull* (New York, 1948), vol. II, pp. 1114–1126). He recalls that almost immediately after Pearl Harbor he had begun to consider the form of unity the nations fighting against Germany and Japan should take, and on December 13 he asked Maxwell M. Hamilton, Chief of the Division of Far Eastern Affairs, "to draw up a draft of a declaration to be made by the nations fighting the Axis, which would bind them together until victory and would commit them to the basic principles that we upheld." (pp. 1114–1115) Hull records that Hamilton prepared two alternative drafts of a declaration by the Allies and that: "These differed only in that one brought in all the Allies, whereas the other consisted of two separate declarations, the first to be signed by all the Allies with the exception of Russia, who was not at war with Japan, and the latter to be signed by Russia. We quickly decided to discard the second draft, believing it would be far more effective to have Russia included with the rest of the Allies." (p. 1115) Hull reports that a new draft was prepared at a meeting of a group of his associates in his office on December 14, and adds: "From December 15 to December 19 my associates and I spent considerable time perfecting drafts of the document that became the United Nations Declaration." (p. 1116)

[2] Mr. Savage was technically Assistant to Assistant Secretary of State Breckinridge Long but was working with the Secretary of State.

[3] The British-Soviet Agreement and Protocol for Joint Action in the War Against Germany was signed at Moscow on July 12, 1941; for text, see League of Nations Treaty Series, vol. CCIV, p. 277, or Department of State *Bulletin*, September 27, 1941, p. 240.

find useful some of the information contained in my memorandum of December sixteenth on the subject of military alliances, a copy of which is attached hereto.[4]

2. The Supreme War Council envisaged in the memorandum prepared today presumably would be far more effective than the Supreme War Council of 1917–1918 because the United States would have a political representative actively participating, whereas then the participation was principally military in the person of General Bliss.[5] Furthermore, this plan for a Supreme War Council envisages representation on the staff, responsible to the Supreme War Council, of members of the naval and air forces of the participating governments whereas the earlier one provided only for a permanent military representative. One of the greatest arguments in favor of the plan envisaged here is that it would probably result in unified command in many theatres of the war. One of the greatest achievements of the earlier Supreme War Council was that it did greatly assist in bringing about a unified command on the Western Front.

CARLTON SAVAGE

740.0011 (European War 1939)/12–1941

Memorandum by Mr. Carlton Savage, Assistant to the Assistant Secretary of State (Long)

[WASHINGTON,] December 19, 1941.

The drafts, (1) Joint Declaration and (2) Memorandum of Agreement: Supreme War Council, were completed today during a conference in the Secretary's office, at which were present the Secretary, Mr. Berle,[6] Mr. Hackworth,[7] Mr. Dunn,[8] Mr. Feis,[9] Mr. Pasvolsky,[10] Mr. Hamilton, and Mr. Savage. The two papers were sent by the Secretary to the White House at one o'clock.[11] With them he sent a copy of my memorandum of December 17, 1941 containing a brief sketch of the Supreme War Council of 1917–1918.[12]

Just before the Secretary left for lunch at one o'clock he asked me to prepare before Cabinet meeting at two, a memorandum[13] setting out the high points of these two papers.

The Secretary called Mr. Berle, Mr. Hackworth and me in about four o'clock this afternoon to say that these two papers had been

---

[4] Not printed.
[5] Gen. Tasker H. Bliss, Chief of Staff, United States Army.
[6] Adolf A. Berle, Jr., Assistant Secretary of State.
[7] Green H. Hackworth, Legal Adviser.
[8] James Clement Dunn, Adviser on Political Relations.
[9] Herbert Feis, Adviser on International Economic Affairs.
[10] Leo Pasvolsky, Chief of the Division of Special Research, and Special Assistant to the Secretary of State.
[11] See memorandum by the Secretary of State to President Roosevelt, *infra*.
[12] Not printed.
[13] *Supra*.

discussed at the Cabinet meeting. There seemed to be general approval of them. The President mentioned only one point about which he had hesitancy. This was about the constitutionality of the Joint Declaration, having in mind especially the agreement not to conclude a separate armistice or cease hostilities except by common agreement.

This question was discussed for some time and it was generally felt that there was no real doubt as to the constitutionality of the provisions. The Secretary suggested, however, that the provision might well be taken from the Joint Declaration, which would be signed by many countries, and placed in the draft regarding the Supreme War Council, which would be signed by four countries. Mr. Welles,[14] who came in during the discussion, suggested also that the first paragraph be changed to contain an enumeration of the titles of the heads of the four governments. Mr. Hornbeck [15] had also suggested in writing that the term "world-wide" be removed from the Joint Declaration.

These three changes were made in the two papers and they were taken by Mr. Berle to the White House at six p. m.,[16] to be substituted in place of the two papers the Secretary had taken over to the Cabinet meeting.

CARLTON SAVAGE

740.0011 (European War 1939)/12–1941

Memorandum by the Secretary of State to President Roosevelt

[WASHINGTON,] December 19, 1941.

Herewith I send you two documents, viz: (1) a draft joint declaration based on the Atlantic Charter [17] predicated on the assumption that the declaring governments have subscribed to its principles; (2) a draft memorandum agreement constituting a supreme war council.

The four chief nations now fighting together, as well as any others who will join with them, should forthwith sign a common declaration of principle, which should embody a pledge to employ their entire resources and their full military effort to defeat the common enemy, and should include a pledge to coordinate these efforts, and should include also a pledge by all of them not to cease hostilities nor conclude a separate armistice with the common enemies or any of them until these enemies are finally defeated.

---

[14] Sumner Welles, Under Secretary of State.
[15] Stanley K. Hornbeck, Adviser on Political Relations.
[16] *Post*, p. 6.
[17] Joint statement by President Roosevelt and British Prime Minister Churchill, August 14, 1941, *Foreign Relations*, 1941, vol. I, p. 367.

Second, it seems essential to provide machinery which will effectively coordinate the use of resources and the military effort, making suitable allocation between theatres of war, keeping continuous check on the execution of war plans and, if possible, achieving unified command in theatres where this is feasible.

[Enclosure 1]

DECEMBER 19, 1941.

Draft Joint Declaration by the United States of America, China, Great Britain, the Union of Soviet Socialist Republics and Other Signatory Governments

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of Great Britain dated August 14, 1941, known as the Atlantic Charter,

Being convinced that complete and world-wide victory of all of them is essential to defend life, liberty and independence, and to preserve human freedom and justice not only in their own lands but everywhere, and that the struggle in which they are now engaged is a common defense against savage and brutal forces seeking to subjugate the world, DECLARE:

(1) Each signatory Government pledges itself to employ its full resources against the Government or Governments which signed the Tripartite Pact on September 27, 1940,[18] with which it is or may be at war, and to continue such employment until that Government or those Governments have been finally defeated;

(2) Each signatory Government pledges itself to cooperate with the others to the entire extent of its capacity to effect full coordination of military effort and use of resources against the common enemies or any of them;

(3) Each signatory Government pledges itself not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement.

[Enclosure 2]

DECEMBER 19, 1941.

Draft Memorandum of Agreement: Supreme War Council

I

1. With a view to the more effective prosecution of warfare against Germany, Italy, and Japan, a Supreme War Council is created, composed of the heads of the governments of Great Britain, the United

[18] Concluded between Germany, Italy, and Japan; for text, see League of Nations Treaty Series, vol. CCIV, p. 386.

States of America and China; and the head of government of the Union of Soviet Socialist Republics in respect of warfare against those countries with which the Soviet Union is at war.

The head of any government may designate a member of his government with full power to represent him.

2. The function of the Supreme War Council is to supervise and coordinate the general conduct of the war and to provide for its successful prosecution.

3. The Supreme War Council may determine theatres of war and may provide for representation of any other government actively engaged in war against a common enemy in such theatres.

4. The Council will be responsible for coordinating distribution of available resources of all categories between various theatres of war.

5. The Supreme War Council shall be charged with effecting unified command in any theatre of war determined by it.

II

1. The Supreme War Council will create a Staff responsible to it and consisting of representatives of the armed forces of each of the members of the Council, who may be the highest ranking officers of the different branches of the respective armed forces.

2. The Staff may draw up general war plans, and shall review general war plans drawn up by the competent authorities of each country. It shall follow the execution by each country of the part allotted to it in any general operation or undertaking, but shall not exercise any of the powers of the commanders-in-chief in the field. It shall perform such other functions as may be assigned to it by the Council.

3. The members of the Staff shall receive from the government and the competent authorities of their respective countries all proposals, information and documents relating to the conduct of the war. They shall watch, day by day, the situation of the armed forces and the means of all kinds of which the armed forces and the enemy armed forces dispose.

4. By direction of the Supreme War Council, the Staff may designate a Staff Division to serve in respect of any theatre of war and may provide for representation of the armed forces of any other power engaged in active war against any of the common enemies in such theatre.

5. The general staffs and military, naval and air commands of the armed forces of each power charged with the conduct of military operations remain responsible to their respective governments, subject to the creation of any unified command which may be agreed upon.

430627—60——2

6. The Staff shall sit continuously and shall establish headquarters for itself or for any Staff Division at such place or places, or in any region, as may be approved by the Supreme War Council.

740.0011 (European War 1939)/12–1941

DECEMBER 19, 1941.

Draft Joint Declaration by the United States of America, China, Great Britain, the Union of Soviet Socialist Republics and Other Signatory Governments [19]

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of Great Britain dated August 14, 1941, known as the Atlantic Charter,

Being convinced that complete victory over their enemies is essential to defend life, liberty and independence, and to preserve human freedom and justice not only in their own lands but everywhere, and that the struggle in which they are now engaged is a common defense against savage and brutal forces seeking to subjugate the world,

DECLARE:

(1) Each signatory Government pledges itself to employ its full resources against the Government or Governments which signed the Tripartite Pact on September 27, 1940, with which it is or may be at war, and to continue such employment until that Government or those Governments have been finally defeated;

(2) Each signatory Government pledges itself to cooperate with the others to the entire extent of its capacity to effect full coordination of military effort and use of resources against the common enemies or any of them.

740.0011 (European War 1939)/12–1941

DECEMBER 19, 1941.

Draft Memorandum of Agreement: Supreme War Council [19]

I

1. With a view to the more effective prosecution of warfare against Germany, Italy and Japan, a Supreme War Council is created composed of H. B. M. Prime Minister in the United Kingdom, the President of the United States of America, the President of the Executive

[19] This draft was taken by Assistant Secretary of State Berle to the White House at 6 p. m., December 19, 1941.

Yuan and Generalissimo of the Armies of the National Government of the Republic of China, and the President of the Soviet of People's Commissars of the Union of Soviet Socialist Republics in respect of warfare against those countries with which the Soviet Union is at war. They may designate a member of their government with full power to represent them.

2. The Chiefs of State or of government above named pledge themselves not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement.

3. The function of the Supreme War Council is to supervise and coordinate the general conduct of the war and to provide for its successful prosecution.

4. The Supreme War Council may determine theatres of war and may provide for representation of any other government actively engaged in war against a common enemy in such theatres.

5. The Council will be responsible for coordinating distribution of available resources of all categories between various theatres of war.

6. The Supreme War Council shall be charged with effecting unified command in any theatre of war determined by it.

II

1. The Supreme War Council will create a Staff responsible to it and consisting of representatives of the armed forces of each of the members of the Council, who may be the highest ranking officers of the different branches of the respective armed forces.

2. The Staff may draw up general war plans, and shall review general war plans drawn up by the competent authorities of each country. It shall follow the execution by each country of the part allotted to it in any general operation or undertaking, but shall not exercise any of the powers of the commanders-in-chief in the field. It shall perform such other functions as may be assigned to it by the Council.

3. The members of the Staff shall receive from the government and the competent authorities of their respective countries all proposals, information and documents relating to the conduct of the war. They shall watch, day by day, the situation of the armed forces and the means of all kinds of which the armed forces and the enemy armed forces dispose.

4. By direction of the Supreme War Council, the Staff may designate a Staff Division to serve in respect of any theatre of war and may provide for representation of the armed forces of any other power engaged in active war against any of the common enemies in such theatre.

5. The general staffs and military, naval and air commands of the armed forces of each power charged with the conduct of military op-

erations remain responsible to their respective governments, subject to the creation of any unified command which may be agreed upon.

6. The Staff shall sit continuously and shall establish headquarters for itself or for any Staff Division at such place or places, or in any region, as may be approved by the Supreme War Council.

740.0011 (European War 1939)/12–2041

Memorandum by the Secretary of State to President Roosevelt

[WASHINGTON,] December 22, 1941.

Referring further to your personal inquiry of me at Cabinet as to whether I considered legal and valid that provision of the Supreme War Council draft to the effect that the President can pledge himself as a member of the War Council "not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement", I herewith enclose opinion by Mr. Hackworth prepared at my request which, in my judgment, makes clear the legal and constitutional validity of this provision. I hope you may have a chance to glance over it.

C[ORDELL] H[ULL]

[Enclosure]

Memorandum by the Legal Adviser (Hackworth) to the Secretary of State

[WASHINGTON,] December 20, 1941.

TERMINATION OF HOSTILITIES

THE SECRETARY: I do not feel that there is the slightest question regarding an undertaking by the President "not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement".

The Constitution declares that the President "shall be Commander in Chief of the Army and Navy of the United States". (Art. 2, sec. 2.) The Supreme Court in *United States* v. *Sweeny* stated that the object of this provision is "evidently to vest in the President the supreme command over all the military forces,—such supreme and undivided command as would be necessary to the prosecution of a successful war." [Underscoring supplied.] [20] (157 U. S. (1895) 281, 284.)

The power of the President as Commander in Chief and his duty to prosecute a war to a "successful" conclusion are no less extensive than

---

[20] Brackets appear in the original.

those of the Congress "To declare war . . . ;[21] To raise and support Armies . . . ; To provide and maintain a Navy", etc. (Art. I, sec. 8.)

The Constitution itself contains no specific grant of power to any branch of the Government to make peace. The matter was discussed, however, at the Constitutional Convention, on August 17, 1787, in connection with the granting of power to Congress to make war. A motion was made to add the words "and peace" after the word "war", so as to give Congress the power to declare both war and peace. The motion was unanimously rejected. (II *Journal of the Constitutional Convention* (Hunt's ed., 1908) 188, 189.)*

While Congress has authority under the Constitution to declare war, once it is declared it is for the President to determine when peace may be concluded. He may conclude an armistice or negotiate a treaty of peace, or both. The armistice is wholly a function of the President but a treaty of peace requires senatorial approval.

Hare, in his work on the Constitution, says that "it is the right of the President, and not of Congress, to determine whether the terms [of peace] are advantageous, and if he refuses to make peace, the war must go on." (I. Hare, *American Constitutional Law* (1889) 171–172.)

In the report of the Judiciary committee to the Forty-ninth Congress on the treaty power, it is stated that "Congress cannot create the status of peace by repealing its declaration of war, because the former requires the concurrence of two wills, the latter but the action of one." (H. Rept. 4177, 49th Cong., 2d sess., p. 9; Henry St. George Tucker, *Limitations on the Treaty-Making Power* (1915) 342, 356–357.)

In August 1919 Senator Fall of New Mexico presented the following question to President Wilson: "In your judgment, have you not the power and authority, by proclamation, to declare in appropriate words that peace exists and thus restore the status of peace between the Governments and peoples of this country and those with whom we declared war?" The President replied: "I feel constrained to say . . . not only that in my judgment I have not the power by proclamation to declare that peace exists, but that I could in no circumstances consent to take such a course prior to the ratification of a formal treaty of peace." (58 *Cong. Rec.* Pt. 4, pp. 4176, 4177.)

The question of the procedure for terminating war was raised by House Joint Resolution 327 of May 21, 1920 intended to repeal the Joint Resolution of April 6, 1917 declaring a state of war to exist between the United States and Germany, and the Joint Resolution of December 7, 1917 declaring a state of war to exist between the United States and the Austro-Hungarian Government, and to declare a state of peace. (59 *Cong. Rec.* Pt. 7, p. 7423.)

---

[21] Omissions throughout this document indicated in the original.

* Article IX of the Articles of Confederation had given Congress sole and exclusive power to determine on peace and war. [Footnote in the original.]

The resolution was vetoed by President Wilson on May 27 on the ground that it did not "accomplish any of these objects" for which the United States had entered the war. He stated:

" . . . I have not felt at liberty to sign this joint resolution because I can not bring myself to become party to an action which would place an ineffaceable stain upon the gallantry and honor of the United States. The resolution seeks to establish peace with the German Empire without exacting from the German Government any action by way of setting right the infinite wrongs which it did to the peoples whom it attacked and whom we professed it our purpose to assist when we entered the war. Have we sacrificed the lives of more than 100,000 Americans and ruined the lives of thousands of others and brought upon thousands of American families an unhappiness that can never end for purposes which we do not now care to state or take further steps to attain?

. . . . . .

" . . . when we entered the war we set forth very definitely the purposes for which we entered, partly because we did not wish to be considered as merely taking part in a European contest. This joint resolution which I return does not seek to accomplish any of these objects, but in effect makes a complete surrender of the rights of the United States so far as the German Government is concerned.

. . . . . .

"But the treaty as signed at Versailles has been rejected by the Senate of the United States, though it has been ratified by Germany. By that rejection and by its method we have in effect declared that we wish to draw apart and pursue objects and interests of our own, unhampered by any connections of interest or of purpose with other Governments and peoples." (59 *Cong. Rec.* Pt. 9 [*8*], pp. 7747, 7748.)

However, on July 2, 1921, President Harding signed a Joint Resolution declaring "at an end" the state of war "declared to exist between the Imperial German Government and the United States of America by the Joint Resolution of Congress approved April 6, 1917." It also declared to be at an end the war between the United States and the Austro-Hungarian Government. (42 Stat. 105.) A joint resolution of Congress announcing the termination of war is undoubtedly valid so far as domestic law is concerned but so far as concerns the international situation, the attitude of the enemy must be taken into account. Peace between the United States and Germany, for example, was not formally restored until the exchange on November 11, 1921 of ratifications of the Treaty of Berlin. President Harding in proclaiming the treaty stated that the war terminated on July 2, 1921. His

action in so doing is probably explainable by the fact that the treaty incorporated parts of the Joint Resolution of that date.

The Circuit Court of Appeals for the Third Circuit declared in a decision in 1930 that—

"The Joint Resolution of Congress of July 2, 1921, did not terminate the war. This resolution was not legally binding on Austria, and regardless of its political effect, it was not a legal restoration of peace as that can be accomplished only by a bilateral treaty of peace . . . ." (*First Nat. Bank of Pittsburgh* v. *Anglo-Oesterreichische Bank, for Use of Anglo-Austrian Bank, Limited, for Use of Grouf*, 37 F. (2d) 564, 567–568.)

In the case of *Arnold et al.* v. *Ellison et al., Appellants*, the Superior Court of Pennsylvania held that the war between the United States and Germany ended on November 14, 1921, the date when the President proclaimed the treaty of peace between the United States and Germany. The court said:

"Nor can we give our assent to appellants' contention that the war was terminated by the joint resolution of Congress, passed July 2, 1921, (42 Stat. at L. 105, Sec. 1). A state of war cannot be terminated by a mere declaration of one of the belligerents that there is no longer any reason for its continuation. The actual termination of a war is a mutual matter evidenced by a treaty, duly ratified by both parties, and it cannot properly be said that a war has ended until the ratifications have been exchanged. True, the section of the Trading with the Enemy Act which we have quoted, after fixing 'the date of proclamation of exchange of ratifications' as the 'end of the war' added 'unless the President shall by proclamation declare a prior date.' This seems to contemplate, for the purposes of that act, the possibility of a proclamation declaring the war ended prior to the exchange of ratifications. No such proclamation was made. The only proclamation was that of November 14, 1921, reciting the exchange of ratifications and declaring the war to have terminated on July 2, 1921. We are not persuaded that this proclamation should be given the retroactive effect contended for; to do so would be equivalent to saying that a right of action, to which the statute would have been a bar within a few days after the end of the war, may, by a proclamation made three days later, be set back more than four months, with the effect that it could never be enforced." (96 Pa. Superior Ct. 118, 124 (1929).)

In the case of *Kotzias* v. *Tyser*, the Court of King's Bench held—"the authorities show that, in the absence of any specific statutory or contractual provision to the contrary, the general rule of international law is that as between civilized Powers who have been at war, peace is not concluded until a treaty of Peace is finally binding upon the belligerents, and that that stage is not reached until ratifications of the treaty of peace have been exchanged between them." (1920) 2 K. B. 69, 77.

Furthermore, whatever may be said of the effect of the Joint Resolution of July 2, 1921, it is to be borne in mind that it was the joint act of the Congress and the President. If in the present situation Congress should pass a resolution with the President's commitment regarding hostilities still outstanding, he could veto it as President Wilson did in 1920 and it could not become operative even domestically unless passed over his veto.

The only way by which Congress could compel the President to "cease hostilities" would be by cutting off the appropriations. Even in such a situation he could do as President Theodore Roosevelt is said to have threatened to do when the Chairman of the Senate Committee on Naval Affairs reportedly announced that Congress would refuse to appropriate money to send the fleet around the world. In referring to the incident he stated:

" . . . However, I announced in response that I had enough money to take the fleet around to the Pacific anyhow, that the fleet would certainly go, and that if Congress did not choose to appropriate enough money to get the fleet back, why, it would stay in the Pacific. There was no further difficulty about the money." (Roosevelt, *An Autobiography* (1913) 592, 598.)

The resolutions of Congress declaring the existence of a state of war between the United States and Japan, Germany and Italy pledge "all of the resources of the country" to bring the conflict to "a successful termination". Both by the resolutions of Congress and by the Constitution the President is to be the judge as to how best to prosecute the war. Its successful termination may depend upon the ability of the President to make certain that Great Britain, Soviet Russia, and China shall continue in the struggle until the enemies are defeated. The best way to be sure that this situation shall obtain is through a pledge by them not to cease fighting except by common agreement of all four Powers. The President could not obtain such a pledge from the other Powers without making one himself. He is justified in doing so by reason of his responsibility as Commander in Chief and his broad powers in the conduct of foreign relations. As stated by the Supreme Court regarding this latter prerogative:

"In this vast external realm, with its important, complicated, delicate and manifest [*manifold*] problems, the President alone has the power to speak or listen as a representative of the nation. . . . Into the field of negotiation the Senate cannot intrude; and Congress itself is powerless to invade it." (*United States* v. *Curtiss–Wright Export Corp. et al.*, 299 U. S. 304, 319 (1936).

GREEN H. HACKWORTH

Hopkins Papers

President Roosevelt to the Secretary of State [22]

WASHINGTON, December 27, 1941.

The Prime Minister [23] showed me the War Cabinet recommendations relative to the draft of a Joint Declaration.[24] I have reread the draft and I have these comments to make:

1. I think every effort should be made to get religious freedom into this document. I believe Litvinoff [25] can be induced to agree to this.

2. I think the language on page 2, paragraph 1 is difficult for the Russians. Some such language as this might handle it:

"Each government pledges itself to employ its full resources against those Axis forces of conquest with which it is at war. Each government pledges itself to continue such employment until these forces have been finally defeated."

I have been trying to think of a way to obviate the necessity of two different documents.

3. I believe the list of countries in paragraph 1 should include all of the nations at war, including the South American Republics. It seems to me a distinct advantage to have as long a list of small countries as possible in this Declaration.

4. I believe that China and the U. S. S. R. should be lifted from an alphabetical listing and included as are the United States and the British Empire on the theory that they are fighting in their own countries.

I have a feeling the U. S. S. R. would not be pleased to see their name following some of the countries which are realistically making a minor contribution.

5. I presume it is up to the British to decide whether or not India should be included, but I don't understand why they don't include it. Perhaps you could prod them a little.

6. I feel that the Free French should not be included in this document.

I am anxious that the most careful thought be given to the language in this Declaration, which will supplement the Atlantic statement, particularly in reference to the real purposes for which we fight.

As soon as you and Halifax [26] have reached a meeting of minds on a Joint Declaration, I think we should have a prompt conference between yourself, Halifax, the Prime Minister and me.

F[RANKLIN] D. R[OOSEVELT]

---

[22] Copy obtained from the Franklin D. Roosevelt Library, Hyde Park, N. Y.

[23] British Prime Minister Winston Churchill. Correspondence regarding the conference at Washington between President Roosevelt and Prime Minister Churchill, with their advisers, December 22, 1941–January 14, 1942, is scheduled for publication in a subsequent volume of *Foreign Relations*.

[24] Draft of December 19, p. 4.

[25] Maxim Maximovich Litvinov, Soviet Ambassador in the United States.

[26] Viscount Halifax, British Ambassador in the United States.

Hopkins Papers

Draft Joint Declaration by the United States of America, China, Great Britain, the Union of Soviet Socialist Republics, Australia, Belgium, Canada, Costa Rica, Cuba, Czechoslovakia, Dominican Republic, El Salvador, Greece, Guatemala, Haiti, Honduras, Netherlands, New Zealand, Nicaragua, Norway, Panama, Poland, Union of South Africa, and Yugoslavia[28]

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of Great Britain dated August 14, 1941, known as the Atlantic Charter,

Having determined that the effective prosecution of warfare against their enemies imperatively requires the creation of a Supreme War Council,

Being convinced that complete victory over their enemies is essential to defend life, liberty, independence and religious freedom, and to preserve human rights and justice not only in their own lands but everywhere, and that the struggle in which they are now engaged is a common defense against savage and brutal forces seeking to subjugate the world, DECLARE:

(1) Each Government pledges itself to employ its full resources against those Axis forces of conquest with which it is at war. Each Government pledges itself to continue such employment until these forces have been finally defeated;

(2) Each signatory Government pledges itself to cooperate with the others to the entire extent of its capacity to effect full coordination of military effort and use of resources against the common enemies or any of them.

The foregoing declaration may be adhered to by other nations which are, or which may be, rendering material assistance and contribution towards the defeat of the members of the Tripartite Pact.

740.0011 (European War 1939)/12–2741

Memorandum by Mr. Carlton Savage, Assistant to the Assistant Secretary of State (Long)

[WASHINGTON,] December 27, 1941.

There was a conversation in the Secretary's office at 4:30 p. m. to consider the President's memorandum of this date commenting on the draft Joint Declaration sent from the Department to the White House

[28] Copy obtained from the Franklin D. Roosevelt Library, Hyde Park, N. Y. This draft was prepared in the Department of State on December 27, 1941, as a result of President Roosevelt's memorandum of December 27, *supra*, and was carried to the White House by the Secretary of State about 6 o'clock that evening.

on December 19. Those present were the Secretary, Mr. Welles, Mr. Hackworth, and Mr. Savage.

The changes suggested by the President were incorporated in a new draft of the Joint Declaration.[29] Furthermore, two additional statements were incorporated in the new draft: (1) The signatories had determined that the effective prosecution of warfare against their enemies required the creation of a Supreme War Council; (2) the Declaration might be adhered to by other nations which are or which may be rendering material assistance and contributions towards the defeat of the members of the Tripartite Pact.

The President, in his memorandum of December 27, made no direct comment on the draft proposal for creating a Supreme War Council. However, he did say that he had been trying to think of a way to obviate the necessity of two different documents. To meet this point, a draft [30] was prepared for the Joint Declaration and the proposal for a Supreme War Council. This joint draft is little different from the two separate drafts; a few changes were made in the first two numbered paragraphs relating to the Supreme War Council. The draft of December 19, regarding the Supreme War Council, was not changed in any way.

For a White House conference tonight, at which were to be present the President, the British Prime Minister, Secretary Hull, and the British Ambassador, the Secretary had prepared copies of the document of December 19, 6 p. m., relating to the Supreme War Council; the new draft Joint Declaration of December 27; and the amalgamated draft of this date containing the Joint Declaration and the memorandum on the Supreme War Council.

At 5:30 the British Ambassador joined the conference and there was a discussion of the three drafts. His principal comment was that the British dominions probably would have to be given a status in the set-up similar to that given Great Britain. It was explained to him that if the Supreme War Council should be made up of a large number of representatives, it would become unwieldy and ineffective. It was also pointed out that provision is made for representation on the Supreme War Council and on the Staff of governments actively engaged against the common enemy in specific theatres of war.

There was a discussion of the position of the Soviet Union and it was generally thought that the Soviet Government would be willing to subscribe to the principles contained in the Joint Declaration and would agree to the formation of a Supreme War Council.

The Secretary and the British Ambassador left for the White House shortly after six, taking with them the three drafts.

CARLTON SAVAGE

---

[29] *Supra.*
[30] *Infra.*

740.0011 (European War 1939)/12-2741

Draft Joint Declaration by the United States of America, China, Great Britain, the Union of Soviet Socialist Republics, Australia, Belgium, Canada, Costa Rica, Cuba, Czechoslovakia, Dominican Republic, El Salvador, Greece, Guatemala, Haiti, Honduras, Netherlands, New Zealand, Nicaragua, Norway, Panama, Poland, Union of South Africa, and Yugoslavia [31]

I

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of Great Britain dated August 14, 1941, known as the Atlantic Charter,

Having determined that the effective prosecution of warfare against their enemies imperatively requires the creation of a Supreme War Council,

Being convinced that complete victory over their enemies is essential to defend life, liberty, independence and religious freedom, and to preserve human rights and justice not only in their own lands but everywhere, and that the struggle in which they are now engaged is a common defense against savage and brutal forces seeking to subjugate the world, DECLARE:

(1) Each Government pledges itself to employ its full resources against those Axis forces of conquest with which it is at war. Each Government pledges itself to continue such employment until these forces have been finally defeated;

(2) Each signatory Government pledges itself to cooperate with the others to the entire extent of its capacity to effect full coordination of military effort and use of resources against the common enemies or any of them.

II

SUPREME WAR COUNCIL [32]

1. With a view to the more effective prosecution of warfare against Germany, Italy and Japan, the Chiefs of State or of Government of

[31] This draft was prepared in the Department of State on December 27, 1941, and carried to the White House by the Secretary of State about 6 o'clock that evening.

[32] Secretary Hull indicates in his *Memoirs* that the proposal for the Supreme War Council met with opposition from Prime Minister Churchill. He records that in a telephone conversation with President Roosevelt on December 31, 1941, "the President said, with respect to the memorandum on the creation of a Supreme War Council, that it seemed desirable to work on a regional basis for the time being, with the possibility that eventually it might be feasible to create an over-all Council. A Supreme War Council such as we at the State Department had suggested was not set up, but the President and the Prime Minister took a major step in that direction during Mr. Churchill's visit by creating the Combined Chiefs of Staff, with headquarters in Washington, to integrate the strategy of the two countries. They also established combined Anglo-American boards to deal with the assignment of munitions, the supply of raw materials, production and resources, shipping and food. Subsequently, unified commands were agreed upon for the Mediterranean, European, Southwest Pacific, and Southeast Asia theaters." (*The Memoirs of Cordell Hull*, vol. II, pp. 1121, 1124.)

the United Kingdom, the United States of America, the Republic of China, and the Union of Soviet Socialist Republics in respect of warfare against those countries with which it is at war, shall constitute a Supreme War Council. They may designate a member of their government with full power to represent them on the Council.

2. The members of the Council pledge themselves not to cease hostilities against or conclude a separate armistice with the common enemies or any of them, except by common agreement.

3. It shall be the function of the Council to supervise and coordinate the general conduct of the war and to provide for its successful prosecution.

4. The Council may determine theatres of war and may provide for representation of any other government actively engaged in war against a common enemy in such theatres.

5. It will be responsible for coordinating distribution of available resources of all categories between various theatres of war.

6. It shall be charged with effecting unified command in any theatre of war determined by it.

7. The Supreme War Council will create a Staff responsible to it and consisting of representatives of the armed forces of each of the members of the Council, who may be the highest ranking officers of the different branches of the respective armed forces.

8. The Staff may draw up general war plans, and shall review general war plans drawn up by the competent authorities of each country. It shall follow the execution by each country of the part allotted to it in any general operation or undertaking, but shall not exercise any of the powers of the commanders-in-chief in the field. It shall perform such other functions as may be assigned to it by the Council.

9. The members of the Staff shall receive from the government and the competent authorities of their respective countries all proposals, information and documents relating to the conduct of the war. They shall watch, day by day, the situation of the armed forces and the means of all kinds of which the armed forces and the enemy armed forces dispose.

10. By direction of the Supreme War Council, the Staff may designate a Staff Division to serve in respect of any theatre of war and may provide for representation of the armed forces of any other power engaged in active war against any of the common enemies in such theatre.

11. The general staffs and military, naval and air commands of the armed forces of each power charged with the conduct of military operations remain responsible to their respective governments, subject to the creation of any unified command which may be agreed upon.

12. The Staff shall sit continuously and shall establish headquarters for itself or for any Staff Division at such place or places, or in any region, as may be approved by the Supreme War Council.

The foregoing declaration may be adhered to by other nations which are, or which may be, rendering material assistance and contributions towards the defeat of the members of the Tripartite Pact.

740.0011 European War 1939/18038

Memorandum of Conversation, by the Secretary of State

[WASHINGTON,] December 29, 1941.

Ambassador Litvinov called at my request. The President had on Saturday [33] handed to him a copy of a proposed Joint Declaration (copy attached) for all countries at war against Japan, Germany and Italy to sign, (with Japan excepted as to Russia), to be sent by the Ambassador to his Government for its approval. The Ambassador handed me the amendments to the Declaration submitted by his Government (copy attached). The Ambassador seemed a little surprised when I stated that the proposed declaration had not been delivered to any other country for signature pending the action of Russia. He then handed to me at my request a copy of a separate declaration (copy attached) [34] which Russia had planned to make upon the possible assumption that the joint declaration was already in circulation among other countries for signature. After some informal discussion I indicated to the Ambassador that my tentative view was that the amendments were unobjectionable with the possible exception of the proposed amendment of the final paragraph which would strike out the words "towards the defeat of members or adherents of the Tripartite Pact" and insert "and contributions in the struggle for victory over Hitlerism". I said that while this Government was engaged during past months in an effort to handle the Japanese situation pending fuller preparations of the United States, Great Britain, Australia and the Netherlands East Indies to defend themselves against the Japanese military movement, the President and others of us had not mentioned Japan in summing up on Hitler's efforts at world conquest and that, therefore, it would be almost impossible for us to omit Japan from the document, should Hitler be mentioned. The Ambassador said it was the other way around with his Government—that Hitlerism stood for Naziism, Fascism and Nipponism. I said that we must undertake to work the matter out in some way that would be mutually satisfactory, and that I was sure that it could be done. The

[33] December 27.
[34] Not printed.

Ambassador seemed to feel the same way about it. He thereupon left with the understanding that I would give the matter further attention and I would see the Ambassador later after consulting with the President on the suggested amendments.

C[ORDELL] H[ULL]

[Annex 1]

Draft Joint Declaration by the United States of America, China, the United Kingdom of Great Britain and Northern Ireland, the Union of Soviet Socialist Republics, Australia, Belgium, Canada, Costa Rica, Cuba, Czechoslovakia, Dominican Republic, El Salvador, Greece, Guatemala, Haiti, Honduras, Netherlands, New Zealand, Nicaragua, Norway, Panama, Poland, South Africa, and Yugoslavia [35]

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of Great Britain dated August 14, 1941, known as the Atlantic Charter,

Being convinced that complete victory over their enemies is essential to defend life, liberty, independence and religious freedom, and to preserve human rights and justice not only in their own lands but everywhere, and that they are now engaged in a common struggle against savage and brutal forces seeking to subjugate the world,

DECLARE:

(1) Each Government pledges itself to employ its full resources, military or economic, against those members of the Tripartite Pact and its adherents with which such government is at war.

(2) Each Government pledges itself to cooperate with the other Governments signatory hereto; and to continue war against, and not to make a separate armistice or peace with the common enemies or any of them.

The foregoing declaration may be adhered to by other nations which are, or which may be, rendering material assistance and contributions towards the defeat of members or adherents of the Tripartite Pact.

[Annex 2]

Amendments by the Soviet Union to the Proposed Joint Declaration

Preamble: . . . "in their own lands as well as in other lands, . . . " instead of " . . . not only in their own lands, but everywhere."

[35] Marginal note: "OK F.D.R."

(2) "Each government pledges itself to cooperate with the governments signatory hereto and not to make a separate armistice or peace with the enemies . . . " instead of the original text.

Final Para: " . . . and contributions in the struggle for victory over Hitlerism," instead of " . . . and contributions towards the defeat of members, etc."

740.0011 European War 1939/18705

Memorandum of Conversation, by the Assistant Chief of the Division of European Affairs (Henderson)

[WASHINGTON,] December 29, 1941.

The Polish Ambassador [38] came in to see me late this afternoon. He said that on Saturday, December 27, the President had called to the White House a number of Chiefs of Mission and had given them to understand that an agreement was being drawn up which all nations engaged in war against Germany would be given an opportunity to sign.

The Ambassador said that he had received the distinct impression that the agreement in question was being prepared at conferences of representatives of a group of powers and that after the wording of the agreement had been decided upon the representatives of other powers engaged in war against Germany would be called in and given a chance to sign.

The Germans, he pointed out, were undoubtedly watching closely the manner in which the international agreement was being drawn up and would make every endeavor to ridicule it and to minimize its importance. From the point of view of the European continent it would be extremely unfortunate if the agreement should be drawn up and signed in such a way as to give the Germans an opportunity to spread propaganda to the effect that it did not represent the spontaneous views of all the powers signing it; that it had been drawn up by a few powers selected because of their immediate strategical importance; and that the other powers had played merely the passive role of signers. German propaganda in Poland, for instance, that the Soviet Union had been given a voice in the drafting of the document while Poland was treated as a secondary power might serve to lower the morale and capacity to resist of the population.

The Ambassador expressed the hope that the document in question would be shown to the various powers which were to be invited to sign it and particularly to Poland before its final text had been irrevocably decided upon and before it had been signed by any other power.

---

[38] Jan Ciechanowski.

In making his suggestion he wished to emphasize the confidence which Poland had in both the President and Mr. Churchill. President Roosevelt understood the Polish problem thoroughly and there could be no better representative of Poland connected with the drawing up of the document than the President himself. His main concern was that it might appear that the appearance of equality was being abandoned. He was sure that the American Government, which had always been a staunch defender of the principles of equality among foreign powers, would understand the position of Poland in this matter.

I told the Ambassador that his suggestions and comments would be passed along to my superiors in the Department.

740.0011 European War 1939/18568

Memorandum of Conversation, by the Under Secretary of State (Welles)

[WASHINGTON,] December 29, 1941.

The British Ambassador called to see me this evening.

The Ambassador read to me from a memorandum, which he said he had left with Harry Hopkins [39] this morning for transmission to the President, which contained the views of the British Cabinet with regard to the proposed allied declaration.

It was pointed out that Luxembourg had been omitted from the list of countries. I said that of course Luxembourg should be included and had undoubtedly been omitted by oversight.

It was further stated that India should be included; that the Viceroy had agreed and was now merely awaiting the technical authority which had to be given by the Viceroy's council.

The Cabinet further expressed particular regret that in the first paragraph the phrase "social security" had been omitted in that part of the text which deals with life, liberty, religious freedom, et cetera.

The Ambassador then referred with great emphasis to the insistence of the British Cabinet that the "Free French Committee" be included in the list. The British Cabinet maintained that inasmuch as the Free French had adhered to the Atlantic Charter, had fought with the British from the outset of the war, and had placed at the disposal of the British Government all of the French colonies where they exercised jurisdiction, the United States Government had no right to veto the inclusion of the Free French Committee.

I stated to the Ambassador that my views with regard to this matter had been set forth to him in full detail in our conversation of December 27 [40] and that I understood the Secretary of State had likewise

[39] Special Assistant to the President.

[40] For memorandum of conversation, see *Foreign Relations*, 1941, vol. II, p. 204.

expressed his general opinions with regard to the Free French during the last forty-eight hours.[41] Further than that I said the President, in his memorandum to the Secretary of State containing his own suggestions for modifying the text of the proposed declaration, had made it clear that in his judgment the Free French should not be included.

The Ambassador argued at some considerable length with regard to the need for including the Free French Committee in some way. He urged that this Government give further thought to the matter. I stated that undoubtedly, in view of the communication which the Ambassador had given Harry Hopkins this morning, the President would have the matter fully in mind.

S[UMNER] W[ELLES]

740.0011 European War 1939/18110

The Secretary of State to the Chinese Ambassador (Hu Shih)

WASHINGTON, December 30, 1941.

MY DEAR MR. AMBASSADOR: I transmit herewith to you for your Government a Joint Declaration.[42] I hope that your Government will indicate its willingness to join as a signatory and will authorize you to sign at the earliest possible moment. Until its issuance, the text of the Declaration and everything connected with it should, of course, be held in strictest confidence.

Very sincerely yours, CORDELL HULL

740.0011 (European War 1939)/12–3041

Memorandum by Mr. Carlton Savage, Assistant to the Assistant Secretary of State (Long)

[WASHINGTON,] December 30, 1941.

This morning the President sent back with his O. K. the attached Joint Declaration,[43] in which had been incorporated the amendments suggested by the Soviet Government.

There was a conversation in the Secretary's office this morning attended by the Secretary, Mr. Berle, Mr. Hackworth, Mr. Hornbeck,

---

[41] See *Foreign Relations*, 1941, vol. II, pp. 557–558.

[42] *Ante*, p. 19.

[43] Not printed. A handwritten marginal note on the attachment reads: "CH OK. It is approved now by Russia and W. S. C[hurchill] but not yet by China FDR Let[']s get it out on Jan. 1. That means speed FDR" The text of the draft declaration is identical with that signed on January 1, 1942 (*post*, p. 25) except for the correction of the title of Prime Minister Churchill as requested by Lord Halifax (see the final paragraph of this document), and the addition of the title, "Declaration by United Nations." Mr. Hull records in his book that the title was suggested December 31 by President Roosevelt to Prime Minister Churchill and agreed to by the latter. (*The Memoirs of Cordell Hull*, vol. II, p. 1124.)

Mr. Hamilton, Mr. Ballantine, and Mr. Savage. It was decided to transmit immediately to the Governments listed in the Joint Declaration a copy of the Declaration asking, in response to the President's request, immediate response so that the document could be made public on January 1. A telegram was sent today to Ambassador Biddle in London to take up the question with all the governments to which he is accredited.[44] Telegrams to the same effect were sent to our Missions in the American Republics which had declared war against the Axis powers.[45] Furthermore, a telegram was sent to our Minister at Ottawa, instructing him to present the Declaration to the Luxembourg Government.

The Secretary received the Chinese Ambassador today and handed him a copy of the Joint Declaration; the attached letter[46] was sent to the Ambassador confirming the conversation.

Lord Halifax desired to insert the expression "social security" in the Declaration but since the President and Prime Minister Churchill desired not to make any changes in the Declaration, in view of the approval already given by the Soviet Government, Mr. Berle convinced Lord Halifax that his Government should recede from this position.

Lord Halifax also suggested that in the Declaration the title of Churchill should be given as "Prime Minister of the United Kingdom of Great Britain and Northern Ireland". This change was made. He also desired to make a change at the end of the document to enable organizations such as the Free French to sign. The Secretary did not feel that we could make any change without the approval of the President, so nothing was done on this point.

CARLTON SAVAGE

740.0011 European War 1939/18742

Memorandum of Telephone Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] December 30, 1941.

Lord Halifax telephoned me about six o'clock this evening, relative to the proposed Joint Declaration.

He said that he had had a cable from his Foreign Office which advised:

(1) That India might be included. Unless we regrouped the British Dominions under the United Kingdom, it would be all right to put in the name "India" in alphabetical order, as we now have it.

[44] Belgium, Czechoslovakia, Greece, Netherlands, Norway, Poland, and Yugoslavia.

[45] Costa Rica, Cuba, Dominican Republic, El Salvador, Guatemala, Haiti, Honduras, Nicaragua, and Panama had declared war.

[46] Not attached to the file copy, but see *supra*.

(2) Of more importance, the Foreign Office wished to use the words "high contracting parties" in place of "governments signatory hereto"; and thereafter to use the words "high contracting parties" in place of the word "governments", and "each high contracting party" in place of the words "each government"; and in place of the words "governments signatory" etc., to use the words "the high contracting parties signatory" etc.

He said that the reason why they wished this was that inclusion of India raised a troublesome point. Much of India was made up of native states who could only be bound by the signature of their king. By making it a governmental agreement rather than an agreement of chief of state, they would avoid the difficulty.

I said that the use of the words "high contracting party" might raise difficulties on our side. There was a running constitutional question as to the point at which a governmental agreement became a treaty; that the words "high contracting parties" were classically treaty-making words with us, and that if we used this phrase the President might be faced with a demand to submit the agreement to the Senate as a treaty, instead of having it as it was now, an agreement based on his war-making power.

A. A. BERLE, JR.

740.0011 European War 1939/18384

Memorandum of Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] December 31, 1941.

Mr. Wrong [47] came in to see me today at his request. He wished to discuss the drafting of the Joint Declaration. He presented the attached memorandum [48] which embodied the comments his Government desired to make on the drafting, and maintained that no question of substance really was involved.

I said that if no real question was involved, I hoped the Canadian Government would not press them. We had reached a point at which many parties, and particularly the U. S. S. R., were now prepared to sign. But if we reopened the draft we probably might have some new claims advanced which would not be to the general advantage. I told Mr. Wrong in confidence that the first instinct of the Russians had been not to sign this draft but to issue a statement of their own which included no solid agreements regarding a separate peace or other necessary commitments. I hoped therefore that the Canadian Government would consider that if we did not adopt

[47] Hume Wrong, Minister Counselor of the Canadian Legation in the United States.

[48] Not printed.

their suggestions, it was due to the fact that there was danger in reopening the subject.

Mr. Wrong adverted to the fact that the document had been presented to Canada through the British Embassy. In view of the unusual nature of the proceeding they did not wish to make a point of this and merely called our attention to the fact that they rather expected that in all similar joint negotiations, we would address them directly.

I said that I had specifically raised this point with Lord Halifax and had inquired of him whether, under the circumstances, it would not be well for us to talk directly to the Canadians. Lord Halifax said he knew the Canadian view but under the peculiar circumstances, he thought it could be handled through the Embassy. The Canadian Government therefore might take note of the fact that we had entered a caveat on the point.

As he was leaving Mr. Wrong observed that if their suggestions could not be included in the draft he was of opinion his Government would nevertheless sign it, although Mackenzie King[49] did attach importance to the redrafting of the second paragraph.

A. A. BERLE, JR.

Executive Agreement Series No. 236
740.0011 European War 1939/18239

Declaration by United Nations:

A JOINT DECLARATION BY THE UNITED STATES OF AMERICA, THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND, THE UNION OF SOVIET SOCIALIST REPUBLICS, CHINA, AUSTRALIA, BELGIUM, CANADA, COSTA RICA, CUBA, CZECHOSLOVAKIA, DOMINICAN REPUBLIC, EL SALVADOR, GREECE, GUATEMALA, HAITI, HONDURAS, INDIA, LUXEMBOURG, NETHERLANDS, NEW ZEALAND, NICARAGUA, NORWAY, PANAMA, POLAND, SOUTH AFRICA, YUGOSLAVIA

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of the United Kingdom of Great Britain and Northern Ireland dated August 14, 1941, known as the Atlantic Charter.

Being convinced that complete victory over their enemies is essential to defend life, liberty, independence and religious freedom, and to preserve human rights and justice in their own lands as well as in other lands, and that they are now engaged in a common struggle against savage and brutal forces seeking to subjugate the world,

DECLARE:

---

[49] Canadian Prime Minister.

(1) Each Government pledges itself to employ its full resources, military or economic, against those members of the Tripartite Pact and its adherents with which such government is at war.

(2) Each Government pledges itself to cooperate with the Governments signatory hereto and not to make a separate armistice or peace with the enemies.

The foregoing declaration may be adhered to by other nations which are, or which may be, rendering material assistance and contributions in the struggle for victory over Hitlerism.

Done at WASHINGTON
January First, 1942.

The United States of America
by FRANKLIN D. ROOSEVELT

The United Kingdom of Great Britain & Northern Ireland
by WINSTON CHURCHILL

On behalf of the Government of the Union of Soviet Socialist Republics
MAXIM LITVINOFF
Ambassador

National Government of the Republic of China
TSE-VUNG SOONG
Minister for Foreign Affairs

The Commonwealth of Australia
by R. G. CASEY

The Kingdom of Belgium
by CTE R. v. STRATEN

Canada
by LEIGHTON McCARTHY

The Republic of Costa Rica
by LUIS FERNÁNDEZ

The Republic of Cuba
by AURELIO F. CONCHESO

Czechoslovak Republic
by V. S. HURBAN

The Dominican Republic
by J. M. TRONCOSO

The Republic of El Salvador
by C. A. ALFARO

The Kingdom of Greece
by CIMON P. DIAMANTOPOULOS

The Republic of Guatemala
by:—ENRIQUE LOPEZ-HERRARTE

La Republique d'Haiti
par FERNAND DENNIS

The Republic of Honduras
by JULIÁN R. CÁCERES

India
by GIRJA SHANKAR BAJPAI

The Grand Duchy of Luxembourg
by HUGUES LE GALLAIS

The Kingdom of the Netherlands
A. LOUDON

Signed on behalf of the Govt. of the Dominion of New Zealand
by FRANK LANGSTONE

The Republic of Nicaragua
by LEÓN DE BAYLE

The Kingdom of Norway
by W. MUNTHE MORGENSTIERNE

The Republic of Panamá
by JAÉN GUARDIA

The Republic of Poland
by JAN CIECHANOWSKI

The Union of South Africa
by RALPH W. CLOSE

The Kingdom of Yugoslavia
by CONSTANTIN A. FOTITCH

740.0011 European War 1939/19567

Memorandum of Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] January 2, 1942.

Participants: Mr. Berle
The Ambassador or Minister of: Australia; Belgium; Canada; Costa Rica; Cuba; Czechoslovakia; Dominican Republic; El Salvador; Greece; Guatemala; Haiti; Honduras; India; Luxembourg; Netherlands; New Zealand; Nicaragua; Norway; Panama; Poland; Union of South Africa; Yugoslavia.

The above named gentlemen called, at my request.

They thereupon signed the Declaration by United Nations,[50] in my presence and in the presence of Mr. Carlton Savage.

The Polish Ambassador said he had instructions to call to the attention of this Government, at time of signing, the declaration made by his Government under date of September 24, 1941;[51] he would embody this in a note. I said we were glad to take note of it.

The Norwegian Minister said that at the meeting held in the White House some days ago there had been some talk as to whether the Danish Minister[52] should sign on behalf of the Danish Government. The Danish Government, had, however, declined to resist at the same time when the Norwegian Government had elected to fight it out, and accordingly Norway was suffering many griefs. With all of the kindliest feeling in the world for the Danish people, he did not think that the two governments could stand in the same category. I called to his attention that the document did not provide for signature by the Danish Government, and could not do so, since the Danish Government was not at war; and Mr. De Kauffmann would not, I thought, feel that he could have signed the document as it stood, in any event.

Sir Girja Shankar Bajpai signed the document "The Government of India, by" etc. He later telephoned to say that on re-reading his instructions he was directed to sign merely, "India", and authorized me to erase the words "Government of"; Mr. Savage and I thereupon did, under that authority.

The American republics, other than Panama, came in a body and signed at 11:30. The Panamanian Ambassador, who was ill, arrived rather later.

---

[50] President Roosevelt, Prime Minister Churchill, Ambassador Litvinov, and Foreign Minister Soong, representing the United States, United Kingdom, Soviet Union, and China, respectively, had signed the Declaration by United Nations on January 1, 1942, in President Roosevelt's study.

[51] British Cmd. 6315, Misc. No. 3 (1941): *Inter-Allied Meeting Held in London at St. James's Palace on September 24, 1941, Report of Proceedings*, p. 14.

[52] Henrik de Kauffmann.

The Canadian Minister signed, asking if we were content to accept telephonic authority, to which I, of course, at once agreed.

The signatures were completed at 2:05.

Following instructions from Mr. Welles, I said to each one that I had understood that the principal signatory governments took the view that the last paragraph of the Declaration would make it possible to permit adherence by free representatives of subjugated peoples where there was no actual government; but in any such case adherence would presumably have to be to the "principles" of the Declaration, since such representatives of course were not at war and therefore could not enter into a covenant not to make a separate peace. It might be that we should wish to exchange notes on the subject later.

A. A. BERLE, JR.

740.0011 (European War 1939)/1–242

Memorandum by Mr. Carlton Savage, Assistant to the Assistant Secretary of State (Long)

[WASHINGTON,] January 2, 1942.

This morning the Joint Declaration came from the White House to Mr. Welles, signed by the President, Prime Minister Churchill, Ambassador Litvinoff, and Foreign Minister Soong. Mr. Welles turned the document over to Mr. Berle.

Mr. Berle called me in to discuss procedure. It was decided that the representatives of the nine American Republics should be asked to sign together at 11:30; that the representatives of the other nations should come to his office around that time.

Mr. Berle and I were present during the affixing of the signatures. The time of signing by the representative of each country was as follows: Australia, 11:07; Czechoslovakia, 11:10; Belgium, 11:33; Cuba, 11:40; Costa Rica, 11:42; Dominican Republic, 11:44; Haiti, 11:45; Honduras, 11:46; Nicaragua, 11:48; Guatemala, 11:49; El Salvador, 11:50; India, 11:55; New Zealand, 11:56; Greece, 12:00; Luxembourg, 12:05; Norway, 12:07; Yugoslavia, 12:08; Poland, 12:15; Netherlands, 12:20; Panama, 12:35; South Africa, 12:50; Canada, 2:05.

The Czechoslovak Minister said it was the most important document he had ever signed. He was so nervous that he could not sign for some minutes after he entered the room. The Panamanian Minister got up from a sick bed to sign for his Government. The Greek and Yugoslav Ministers expressed themselves as being very eager to sign this important Declaration. The representative from India remarked that he signed for four hundred million people, more than any other, except perhaps the representative of China. When it became evident that the Canadian Minister would be the last to sign because he had

not received authorization from his Government we contacted the Legation. After some time the Minister received telephone authorization from Ottawa and came immediately to the Department.

After the document was signed a copy was sent to the White House at 2:15. The original we had photostated immediately. The original was photographed by representatives of AP, Acme, International, Harris and Ewing, Underwood and Underwood, Chicago *Sun*, Paramount, and Pathé.

I talked with the Secretary about five o'clock about a proposed press release regarding the Joint Declaration, wherein it was referred to as an alliance. I suggested that that term be not used as the President had not gone so far in a description of it. The press release was changed accordingly and issued tonight.[53]

CARLTON SAVAGE

740.0011 European War 1939/18509

Memorandum of Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] January 3, 1942.

The Danish Minister came in to see me, at his request. He pointed out that he had sent in his statement of adherence to the Declaration by United Nations.[54]

I said at once that the problem of who should and who should not be permitted to adhere was a matter which, by direction of the Secretary, I was referring to the White House; and that I assumed that precipitate action was not necessary. The Minister observed that since he had sent in his adherence, he presumed that if and when the problem were settled, the date of his declaration of adherence could be taken as the date of adherence itself. I said I thought that could be arranged when the time came.

A. A. B[ERLE], JR.

740.0011 European War 1939/19532½

Memorandum of Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] January 6, 1942.

The Latvian Minister[55] came in to see me, at my request. I refer to his note of January 4, 1942,[56] which requested that the adherence of Latvia be attached to the Declaration by United Nations. I said that

---

[53] For text, see Department of State *Bulletin*, January 3, 1942, p. 4.
[54] Statement not printed.
[55] Alfred Bilmanis.
[56] Not printed.

no one was better aware than he of the deep sympathy which the United States, and which I personally, had for the Latvian people. But, I said, no one was in a better situation to appreciate the complications which this request made at this time. I therefore hoped he would withdraw the note.

The Minister said that unfortunately he could not very well do that, because he had published the fact of its delivery; and had cabled its contents to the Latvian Minister in London, who had discussed it with the Ministers of the Baltic states. Under these circumstances he suggested, instead, that the note be merely left on file, and that the Latvian Government should not press for an answer.

I said I thought under the circumstances that was the best thing to do, and we would leave it that way.

The Latvian Minister then said that, recognizing the difficulty of their situation as respected Russia, he had this to say. Permanent conquest or dominion over Latvia by Germany meant simply extermination. On the other hand, they had always hoped for an adjustment with Russia.

I said that I had hoped that that would be possible; and that in the evolution of affairs a time might come when some such project could be discussed, as manifestly it could not now. Possibly, when victory over Germany was complete and any fear from the German side was removed, the U. S. S. R. might be prepared to consider some basis which respected the essential integrity of Latvia.

A. A. BERLE, JR.

740.0011 European War 1939/18926

Memorandum of Conversation, by the Assistant Secretary of State (Berle)

[WASHINGTON,] January 9, 1942.

The Icelandic Minister [57] came in to see me at his request.

He said that he had been invited by the President to the original meeting at which the Declaration by United Nations had been discussed, and the President had said he hoped Iceland would sign. When, however, the document was later opened for signature Iceland had not been invited. He wished to cable the situation to his Government. He made it clear that this was not in the nature of a protest but merely an inquiry as to the circumstances.

I said that as the Declaration had finally been drawn it applied only to governments which were at war, since it included a covenant not to make a separate peace. The Icelandic Government had made it very plain that it was not a belligerent but a neutral. In these circum-

[57] Thor Thors.

stances, and since the President had opened the question with the Icelandic Minister, I had considered that we should leave it to the Icelandic Government to follow up or not, as it chose. Since it was not at war, I feared that the Minister might have been put in the position of having to refuse to sign the Declaration and that the kindest method was, accordingly, to leave it to the Minister's discretion and the determination of his Government. This was peculiarly true since American troops were on Icelandic soil and we wanted it perfectly clear that there was not the slightest desire to influence their course.

The Minister said he knew all this, and was very appreciative of the fact that we had left the matter entirely to their discretion. Iceland, he said, was not at war and could not enter the stipulations of the Declaration without an act of Parliament, which did not meet until February 15. Their policy had been that of nonbelligerency. He had thought, at the time of the White House discussion, that the Declaration was merely one of principle, without including the stipulation making it virtually an act of belligerence; and that when that clause appeared, a different set of considerations came into play.

He wondered whether some other form of adherence ought to be considered.

I said that particularly because our troops were in Iceland, we were loath to advise. I personally thought that they might want to take into consideration the possibility of adhering to the Atlantic Charter; or conceivably they might wish to propose adherence to the Declaration by United Nations, with reservation that, not being at war, the "no separate peace clause" naturally did not apply. But, I said, as to that, it was entirely a matter for their determination and we would sympathetically consider any approach they might make.

The Minister said he was going to report to his Government by mail in time for discussion at the next meeting of the Icelandic Parliament.

A. A. B[ERLE], JR.

740.0011 European War 1939/19264

Memorandum of Conversation, by the Acting Chief of the Division of European Affairs (Atherton)

[WASHINGTON,] January 10, 1942.

The Soviet Ambassador called on me by reference from the Secretary. He said that he had discussed with Mr. Hull the signatories to the United Declaration. He said that at the time of signing when he had discussed it with the President, it had been suggested, and warmly seconded by Mr. Churchill, that it should read: Nations "and Authorities". Mr. Churchill stressed very much that this would permit the Free French to sign. Mr. Litvinov said that he had no authority to agree to it and therefore was unable to accede even though in the

course of the argument it was set down that any authorities who signed would only be those authorities that were agreed to by the four principal signatory powers, such as, *inter alia*, the Free French, to whom Mr. Churchill was making reference. Consequently, the Soviet Ambassador asked me, in regard to the many groups asking who would be permitted to sign, and what was the attitude of this Government? Could I give him any information with particular reference to reports of King Carol, a Free German group, or the Latvian Minister? I replied to the Ambassador that this was not a question of individual authority at the present time—it was a question of policy that must be decided as a whole before any single authority or group could be permitted and therefore I could not discuss it on the basis of any one applicant but rather must await a final decision of policy which, I assume, would be in a few days. The Soviet Ambassador said that in that case it would give him time to raise the matter with the President. He then asked me whether any of these applicants for signature were receiving replies. I said we had had one or two telegrams from our diplomatic missions abroad and we had answered them that this was a question of policy which must be decided upon, but beyond that, no individual applicant had received any acknowledgment or answer to a written application. (This was subsequently confirmed to me by Mr. Berle.)

The Ambassador said he was very grateful for the information, but he could not get out of his mind the fact that even when the policy was determined, there was a semi idea remaining in his mind, that it had been tentatively discussed at the White House with the President and Mr. Churchill that no movement or authority could be permitted to sign the United Declaration except by previous reference to the four principal signatories.

R[AY] A[THERTON]

740.0011 European War 1939/18197 : Telegram

The Secretary of State to the Ambassador in the United Kingdom (Winant)

WASHINGTON, January 10, 1942—2 p. m.

123. Your 63, January 6.[58] Department has not adopted the practice of acknowledging receipt of messages of this kind. It receives them as merely expressions of sentiment of individuals or organizations. Naturally they are not accepted as adherences to the Declaration.

---

[58] Not printed; it reported receipt of a telegram from Dr. V. V. Tilea, President of the Rumanian National Committee, declaring that the Free Rumanians adhered to the United Nations Declaration.

Department's present attitude is that official adherence to the Declaration should be permitted only to movements or groups whose character is so representative that they can be considered as the equivalent of national councils. No indication has been given to any movement or group that it will be permitted to adhere officially and Department considers that great caution must be exercised before permitting such adherence.

HULL

740.0011 European War 1939/18823

Memorandum by Mr. Samuel Reber of the Division of European Affairs

[WASHINGTON,] January 12, 1942.

The Free French Commissioner informed the Department on December 10 [*30?*], 1941, that the French National Committee in London was studying the question of adherence to the joint declaration of the 26 Powers. Mr. Tixier explained that General de Gaulle [59] had informed him that in all previous Allied conferences in London the Free French had been admitted on a basis of equality with the other exile governments. It therefore seemed strange that as soon as America entered the war the Free French were eliminated from the Allied conferences in spite of the military effort which they are making and their effort of full cooperation, particularly as regards bases in the Pacific Ocean. Mr. Tixier went on to explain that General de Gaulle felt it would not be possible for him to adhere if the Free French movement were relegated to the same position as the socalled Free German movement, King Carol, a Free Austrian movement, et cetera, movements which represented no military effort and which were not in control of any territory.

It was appreciated that no official recognition of the Free French movement as a government could be forthcoming but it was felt that some recognition could be given to the fact that the Free French National Committee in London was in control of strategically important French territories and was fully associated with the united nations in their war effort.

It was hoped that it might be possible for this Government to adopt the same attitude as the British Government which "regards the Free French National as representing all free Frenchmen wherever they may be who rally to the Free French movement in support of the Allied cause and treats with the Committee on all questions involving their collaboration with the Free French movement and with the French overseas territories, which place themselves under its territory".

---

[59] Gen. Charles de Gaulle, President of the French National Committee.

740.0011 European War 1939/19532½

The Estonian Acting Consul General (Kaiv) to the Secretary of State

No. 594 NEW YORK, January 12, 1942.

SIR: The Declaration by United Nations signed at Washington on January first is of greatest importance to the Estonian people.

Unfortunately at present the Estonian nation, silenced by military force of Germany, does not have the possibility to speak through its legal Government and elected representatives, practically all of whom have been deported to Russia long before the hostilities had begun between the Reich and the Union of Soviet Socialist Republics. Under the provisions of the Constitution of Estonia the authority to adhere to acts of the nature of the Declaration of Washington on behalf of the Estonian nation rests with the Government and the Parliament of Estonia.

However, in my capacity as the recognized representative of the Estonian Republic in this country, I feel entitled to assure the Government of the United States, as the depository for that declaration, that, when the Estonian people will be informed of the fact that the accredited representative of the Soviet Union subscribed, on behalf of his Government and without any reservations, to a common program of purposes and principles embodied in the Atlantic Charter of August 14, 1941,—the Estonians will be strengthened in their faith that all the injustices which were perpetrated against the Estonian liberty by two successive occupations, will be redeemed. The fact that the Declaration of Washington has been signed by the United States, Great Britain, and other democratic nations is a guaranty that it will be performed by all the Parties involved.

In due time, when the Estonian people will again become free in their deliberations and decisions, Estonia will join other free nations in the common struggle against all brutal forces seeking to subjugate the world.

Accept [etc.] JOHANNES KAIV

740.0011 European War 1939/18682

Memorandum by the Assistant Chief of the Division of European Affairs (Henderson) to the Acting Chief of the Division (Atherton)

[WASHINGTON,] January 13, 1942.

MR. ATHERTON: You will note Mr. Long's memorandum [60] covering a conversation which he has had with Litvinoff.

It is likely that the Russians will oppose the adherence of all "Free Movements" to the Declaration of the 26 Nations except those which

[60] Dated January 12, 1942, not printed.

have a Communist center or are willing to work for certain specific Soviet aims. If Litvinoff succeeds in obtaining a veto power for the Soviet Government with regard to future adherences to the Declaration, the Soviet Government is likely at some time or other to use this power in a manner which may be embarrassing to us and to the other signatories.

740.0011 European War 1939/18691a : Telegram

The Secretary of State to the Ambassador in the United Kingdom (Winant)[61]

WASHINGTON, January 17, 1942—11 p. m.

204. Please transmit to Zog I King of the Albanians the following message:

"Your cable of January 6[62] has been received with appreciation and I reciprocate your hope for the triumph of human rights and international justice. Franklin D. Roosevelt."

You may add verbally that as yet no procedure has been established for adherence to the principles of the Declaration by United Nations for other than governments but that note has been taken of his request.

HULL

740.0011 European War 1939/19236 : Telegram

The Ambassador in the United Kingdom (Winant) to the Secretary of State

LONDON, February 5, 1942—6 p. m.
[Received 8:10 p. m.]

548. As the Department suggested, I asked Mr. Eden[63] to keep me informed regarding developments in the Near East. He has just given me a memorandum on Iraq and Saudi Arabia, the substance of which I give below:

It is the wish of the British Government that the United States Government should know that recently General Nuri[64] approached the British Government with the proposal that Iraq and Saudi Arabia simultaneously should declare war on Germany and Italy and should accede to the 26-Power Pact. At the same time he asked for an assurance that Iraqi troops would not be used outside Iraq. The British Government had come to the conclusion already that a declaration of war on the part of Ibn Saud[65] would have a valuable effect morally

[61] Marginal note: "OK FDR."
[62] Sent direct to the President.
[63] Anthony Eden, British Secretary of State for Foreign Affairs.
[64] Gen. Nuri as-Said, Iraqi Prime Minister and Acting Minister of Defense.
[65] King of Saudi Arabia.

throughout the Middle East and that facilities for air and land communications across Saudi Arabia would be very useful in certain circumstances. The British Government therefore think that the Iraqi Government should be permitted and an invitation be sent to Ibn Saud to adopt action on the lines which General Nuri proposed, and the British Ambassador at Baghdad has been instructed to inform him that the British Government concurs in his proposal in general provided a beginning is made with Ibn Saud and that General Nuri is content to wait upon the result of the approach to Saudi Arabia. Sir K. Cornwallis, however, has been instructed also to point out to General Nuri that Iraq cannot accede to the 26-Power Pact conditionally and that the British Government is not in a position without consulting the other signatories, to interpret a multilateral pact of this nature; and he has been authorized to add that it is obvious that many of the signatories will not do more than Iraq is bound already to do under the Treaty of Alliance [66] and that it is the intention clearly of all concerned that the obligations of the various signatories shall be reasonably interpreted. The proposal is that the British Minister at Jedda shall in the near future sound Ibn Saud personally. The United States Government will be kept informed of developments. The British Government trust that for the time being, this information will be treated as very secret by the United States Government.

WINANT

740.0011 European War 1939/19207

Memorandum by the Chief of the Division of Far Eastern Affairs (Hamilton)

[WASHINGTON,] February 5, 1942.

Reference Dr. Syngman Rhee's note of February 2, 1942,[67] requesting that he be permitted to sign on behalf of the Korean people the Declaration by the United Nations.

In the Department's press release of January 4 [*5*], 1942,[68] it was stated that ". . .[69] the government of the United States as the depository for that Declaration, will receive statements of adherence to its (the Declaration by the United Nations) principles from appropriate authorities which are not governments". A considerable number of requests for permission to adhere have been received from such authorities. The Department has as yet taken no action in regard to any of them. As Dr. Rhee is stated by the Provisional Government of the Republic of Korea to be its representative, it is suggested

---

[66] Between the United Kingdom and Iraq, signed June 30, 1930, League of Nations Treaty Series, vol. CXXXII, p. 363.

[67] Not printed.

[68] Department of State *Bulletin*, January 10, 1942, p. 44.

[69] Omission indicated in the original memorandum.

that the attached note from Dr. Rhee [70] be forwarded to Mr. Hoskins in Mr. Berle's office to be held with other similar communications, which are understood to be some 25 in number. It would seem that consideration of the action to be taken with regard to Dr. Rhee's note should be deferred until consideration is also given to the similar requests.

M[AXWELL] M. H[AMILTON]

740.0011 European War 1939/19236 : Telegram

The Secretary of State to the Ambassador in the United Kingdom (Winant)

WASHINGTON, February 7, 1942—7 p. m.

474. Referring to your 548 of February 5 with respect to proposed declarations of war and adherences of Iraq and Saudi Arabia to the Declaration by United Nations, please communicate following to Foreign Office:

The Government of the United States, as the depository for the Declaration, considers that any generally recognized nation which is "at war" with one or more of the common enemies and is, or may be, "rendering material assistance and contributions" becomes eligible to adhere to the Declaration. In any such case this Government will accept an adherence for deposit with the original Declaration.

This Government concurs with the British view that declarations of war by the two governments and adherences by them to the Declaration would be advantageous.

HULL

Roosevelt Papers : Telegram

The British Prime Minister (Churchill) to President Roosevelt [71]

[LONDON,] February 27, 1942—7:56 p. m.

No. 33. United Nations Declaration. I believe that a number of foreign individuals, organizations, or groups have recently told the United States Government, and in some cases they have told us as well, of their wish to accede to the United Nations Declaration as "appropriate authorities" within the terms of the statement issued by the United States Government on January sixth [*fifth*].[72] You will remember that this statement was devised for the Free French. Applications have been received, among others, from Otto Strassers Free German movement, the Basque and Catalan Émigré movements, King Zog and the Latvian Minister at Washington. Halifax has

[70] i. e., the note of February 2, not printed.

[71] Copy obtained from the Franklin D. Roosevelt Library, Hyde Park, N. Y.

[72] See memorandum by the Chief of the Division of Far Eastern Affairs, February 5, p. 36.

told the State Department that the acceptance of statements of accession by these groups would be embarrassing to us and I understand that there is not in fact any question of such accessions being accepted. We may, however, shortly have to consider approaches from more welcome candidates such as Persia and Ethiopia and possibly Iraq and Saudi Arabia as well as the Free French. My feeling is that it should be left to the country desiring to join to take the initiative but that we should welcome adherence of these particular countries. I am most anxious that you and we should keep in step and that no accession should be accepted without previous consultation between the two of us. As I understand that you are dealing personally with this question, I put my views directly to you. Each particular case which arises can of course be discussed through the usual channels.

PRIME

740.0011 European War 1939/19874a : Telegram

President Roosevelt to the British Prime Minister (Churchill)

[WASHINGTON,] March 3, 1942.

The views outlined in your telegram on the adherences to the United Nations declaration very closely coincide with mine.

I believe we should without question accept the adherence of the French National Committee in London, whenever submitted, but that we should consult as to the action to be taken on requests for further adherences from governments with which we are still in official communication.

We might then determine at what moment we should bring the Soviet Government and other governments of the United Nations, which may be directly concerned, into these consultations.

As for "free groups" representing the populations of occupied countries and other organizations I have no intention of taking any action without full consultation with you.

Welles had already commenced the discussion of this general problem with Halifax prior to the receipt of your message, and he will continue these conversations along the lines above indicated.[73]

ROOSEVELT

[By May 1, 1945, the text of this declaration had been acceded to and signed also by Bolivia, Brazil, Chile, Colombia, Ecuador, Egypt, Ethiopia, France, Iran, Iraq, Lebanon, Liberia, Mexico, Paraguay, Peru, Philippines, Saudi Arabia, Syria, Turkey, Uruguay, and Venezuela. See also Department of State *Bulletin*, August 12, 1945, page 238.]

[73] Apparently no further action was taken regarding adherence of "free groups". The date of the French notification of adherence was December 26, 1944, after liberation.